

The U.P. Government Central Textile Institute (Ministerial) Service Rules, 1994

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State of Uttar Pradesh - Act

The U.P. Government Central Textile Institute (Ministerial) Service Rules, 1994

UTTAR PRADESH

India

The U.P. Government Central Textile Institute (Ministerial) Service Rules, 1994

Rule THE-U-P-GOVERNMENT-CENTRAL-TEXTILE-INSTITUTE-MINISTERIAL-SERVICE-RULES-1994 of 1994

Published on 30 March 1994

Commenced on 30 March 1994

[This is the version of this document from 30 March 1994.]

[Note: The original publication document is not available and this content could not be verified.]

The U.P. Government Central Textile Institute (Ministerial) Service Rules, 1994

Published vide Notification No. 981-94 - 50 LHA-1 - 74-93, dated 30-3-1994, published in U.P. Gazette, Part 1 (Ka), dated 30-4-1994

In pursuance of the provisions of clause (3) of Article 348 of the Constitution, the Governor is pleased to order the publication of the following English translation of Notification No. 981-94-50-LHA-1-74-93, dated March 30, 1994 :

In exercise of the powers conferred by the provision to Article 309 of the Constitution and in supersession of all existing rules and orders on the subject, the Governor is pleased to make the following rules regulating recruitment and the conditions of service of persons appointed to the Uttar Pradesh, Government Central Textile Institute (Ministerial) Service.

Part I ? General

1.

Short title and commencement.

(1)

These rules may be called the Uttar Pradesh Government Central Textile Institute (Ministerial) Service Rules, 1994.

(2)

They shall come into force at once.

2.

Status of the Service.

- The Uttar Pradesh, Government Central Textile Institute, (Ministerial) Service comprises Group 'C' posts.

3.

Definitions.

- In these rules unless there is anything repugnant in the subject or context:

(a)

"appointing authority" means the Principal,

(b)

"citizen of India" means a person who is or is deemed to be a citizen of India under Part II of the Constitution,

(c)

"Constitution" means the Constitution of India,

(d)

"Commission" means the Uttar Pradesh Subordinate Services Selection Commission,

(e)

"Government" means the State Government of Uttar Pradesh,

(f)

"Governor" means the Governor of Uttar Pradesh,

(g)

"member of the service" means a person substantively appointed under these rules or the rules or orders in force prior to the commencement of these rules to a post in the cadre of the Service;

(h)

"Principal" means the Principal Government Central Textile Institute, Kanpur,

(i)

"Service" means the Uttar Pradesh, Government Central Textile Institute, (Ministerial) Service,

(j)

"substantive appointment" means an appointment not being an ad hoc appointment, on a post in the cadre of the Service, made after selection in accordance with the rules and, if there are no rules, in accordance with the procedure prescribed for the time being by executive instructions prescribed by the Government;

(k)

"year of recruitment" means a period of twelve months commencing from the first day of July of a calendar year.

Part II ? Cadre

4.

Cadre of the Service.

(1)

The strength of the Service and of each category of posts therein shall be such as may be determined by the Government from time to time.

(2)

The strength of the Service and of each category of posts therein shall, until orders varying the same are passed under sub-rule (1), be as given in column 6 of the Appendix:

Provided that-

(1)

the appointing authority may leave unfilled or the Governor may hold in abeyance any vacant post, without thereby entitling any person to compensation.

(2)

the Governor may create such additional permanent or temporary posts as he may consider proper.

Part III ? Recruitment

5.

Source of recruitment.

- Recruitment to the various categories of posts in the Service shall be made from the sources mentioned against each post in column 7 of the Appendix.

6.

Reservation.

- Reservation for the candidates belonging to the Scheduled Caste, Scheduled Tribes and other categories shall be in accordance with the order of the Government in force at the time of the recruitment.

Part IV ? Qualifications

7.

Nationality.

- A candidate for direct recruitment to a post in the Service must be:

(a)

a citizen of India, or

(b)

a Tibetan refugee who came over to India before the 1st January, 1962, with the intention of permanently settling in India, or

(c)

a person of Indian origin who has migrated from Pakistan, Burma, Sri Lanka or any of the East African countries of Kenya, Uganda and the United Republic of Tanzania (formerly Tanganyika and Zanzibar) with the intention of permanently settling in India :

Provided that a candidate belonging to category (b) or (c) above must be a person in whose favour a certificate of eligibility has been issued by the State Government:

Provided further that a candidate belonging to category (b) will also be required to obtain a certificate of eligibility granted by the Deputy Inspector General of Police, Intelligence Branch Uttar Pradesh :

Provided also that if a candidate belongs to category (c) above, no certificate of eligibility will be issued for a period of more than one year and the retention of such a candidate in service beyond a period of one year, shall be subject to his acquiring Indian citizenship.

Note. - A candidate in whose case a certificate of eligibility is necessary but the same has neither been issued nor refused, he may be admitted to an examination or interview and he may also be provisionally appointed subject to the necessary certificate being obtained by him or issued in his favour.

8.

Academic qualification.

- A candidate for direct recruitment to the various posts in the Service must possess the qualifications as given in column 8 of the Appendix.

9.

Preferential qualification.

- A candidates who has (i) served in the Territorial Army for a minimum period of two years or (ii) obtained 'B' certificate of National Cadet Corps, shall other things being equal, be given preference in the matter of direct recruitment.

10.

Age.

- A candidate for direct recruitment must have attained the age of 18 years and must not have attained the age of more than 32 years on the first day of calendar year in which the vacancies are advertised :

Provided that the upper age-limit in the case of candidates belonging to the Scheduled Caste, Scheduled Tribes and such other categories as may be notified by the Government from time to time shall be greater by such number of years as may be specified.

11.

Character.

- The character of a candidate for direct recruitment to a post in the Service must be such as to render him suitable in all respects for employment in Government service. The appointing authority shall satisfy itself on this point.

Note. - Person dismissed by the Union Government or a State Government or by a Local Authority or a Corporation or Body owned or controlled by the Union Government or a State Government shall be ineligible for appointment to any post in the Service. Persons convicted of an offence involving moral turpitude shall also be ineligible.

12.

Marital status.

- A male candidate who has more than one wife living or a female candidate who has married a man already having a wife living shall not be eligible for appointment to a post in the Service :

Provided that the Government may, if satisfied that there exist special grounds for doing so exempt any person from the operation of this rule.

13.

Physical fitness.

- No candidate shall be appointed to a post in the Service unless he be in good mental and bodily health and free from any physical defect likely to interfere with the efficient performance of his duties. Before a candidate is finally approved for appointment he shall be required to produce a medical certificate of fitness in accordance with the rules framed under Fundamental Rules 10 contained in Chapter III of the Financial Hand Book, Volume II, Part III :

Provided that a medical certificate of fitness shall not be required from a candidate recruited by promotion.

Part V ? Procedure for Recruitment

14.

Determination of vacancies.

- The appointing authority shall determine the number of vacancies to be filled during the course of the year as also the number of vacancies to be reserved for candidates belonging to the Scheduled Caste, Scheduled Tribes and other categories under Rule 6. The vacancies to be filled through direct recruitment through the Commission shall be intimated to them. The vacancies to be filled through direct recruitment through the Selection Committee shall be notified to the Employment Exchange in accordance with the rules and orders for the time being in force.

15.

Procedure for direct recruitment through the Commission.

(1)

Applications for being considered for selection shall be invited by the Commission in the form published in the advertisement issued by the Commission.

(2)

After the results of the written examination have been received and tabulated, the Commission shall, having regard to the need for securing due representation of the candidate belonging to the Scheduled Caste, Scheduled Tribes and others under Rule 6, summon for interview such number of candidates as on the result of the written examination, have come upto the standard fixed by the Commission in this respect. The marks awarded to each candidate at the interview shall be added to the marks obtained by him in the written examination.

(3)

The Commission shall prepare a list of candidates in order of their proficiency as disclosed by the aggregate of marks obtained by each candidate at the written examination and interview, and recommend such number of candidates as they consider fit for appointment. If two or more candidates obtain equal marks in the aggregate the name of the candidate obtaining higher marks in the written examination shall be placed higher in the list. The number of the names in the list shall be larger (but not larger by more than 25 per cent) than the number of the vacancies. The Commission shall forward the list to the appointing authority.

16.

Procedure for direct recruitment for the posts of Accountant, Stenographer, Account Clerk, Junior Clerk, Store Keeper and Hostel Clerk.

(1)

For the purpose of recruitment there shall be constituted a Selection Committee as follows :

(i)

Appointing Authority

...

Chairman

(ii)

An officer belonging to Scheduled Caste or Scheduled Tribes nominated by the District Magistrate if the appointing authority does not belong to Scheduled Castes or Scheduled Tribes, an officer other than belonging to Scheduled Castes or Scheduled Tribes, to be nominated by the District Magistrate

...

Chairman

(iii)

Two officers nominated by the appointing authority one of whom shall be an officer belonging to Minority Community and the other belonging to Backward Class. If such suitable officer or officers are not available in his department or organisation, such suitable officer or officers as the case may be, shall, on the request of the appointing authority, be nominated by the District Magistrate and on his failure to do so, by reason of non-availability of suitable officers such officers shall be nominated by the Divisional Commissioner

...

Members

(2)

The Selection Committee shall scrutinise the applications and require the eligible candidate to appear in a competitive examination.

(3)

After the marks obtained by the candidate in the written examination have been tabulated, the Selection Committee shall having regard to the need for securing due representation of the candidates belonging to Scheduled Castes, Scheduled Tribes and other categories in accordance with Rule 6 call for interview such number of candidates as, on the result of the written examination have come upto the standard fixed by the Committee in this respect. The marks awarded to each candidate in the interview shall be added to the marks obtained by him in the written examination.

(4)

The Selection Committee shall prepare a list of candidates in order of merit, as disclosed by the aggregate of marks obtained by them in the written examination and interview. If two or more candidates obtained equal marks the candidate obtaining higher marks in the written examination shall be placed higher. The number of names in the list shall be larger (but not larger by more than 25 per cent) than the number of the vacancies.

17.

Procedure for direct recruitment for the posts of Accountant, Librarian and Library Clerk.

(1)

For the purpose of recruitment to the posts of Accountant, Librarian and Library Clerk there shall be constituted a Selection Committee as detailed in sub-rule (1) of Rule 16 of these rules.

(2)

The Selection Committee shall, having regard to the need for securing due representation of the candidates belonging to the Scheduled Castes, Scheduled Tribes and other categories in accordance with Rule 6, call for interview such number of candidates who fulfil the requisite qualification, as it considers proper.

(3)

The Selection Committee shall prepare a list of candidates in order of their proficiency as disclosed by the marks obtained by each candidate in the interview. If two or more candidates obtain equal marks the name of the candidate senior in age shall be placed above the name of the candidate who is junior to him. The number of the names in the list shall be larger (but not larger by more than 25 per cent) than the number of the vacancies.

18.

Procedure for recruitment by promotion.

(1)

Recruitment by promotion shall be made on the basis of seniority subject to the rejection of unfit through a Selection Committee comprising :

(1)

Appointing Authority

...

Chairman.

(2)

Two officers nominated by the Appointing Authority

...

Member.

(2)

The appointing authority shall prepare eligibility lists of the candidates in accordance with the Uttar Pradesh Promotion by Selection (on Posts Outside the Purview of the Public Service Commission) Eligibility List Rules, 1986, and place the same before the Selection Committee along with their character rolls and such other record pertaining to them, as may be considered proper:

Provided that where there are two different feeding cadres :

(a)

bearing different pay scales the candidates belonging to the cadre bearing higher pay scale shall be placed higher in the eligibility list;

(b)

bearing same pay scale the names of the candidates shall be arranged in the eligibility list in order of the date of their substantive appointment in their respective cadres.

(3)

The Selection Committee shall consider the cases of candidates on the basis of the records referred to in sub-rule (2) and if it considers necessary, it may interview the candidates also.

(4)

The Selection Committee shall prepare a list of selected candidates arranged in order of seniority as it stood in the cadre from which they are to be promoted and forward the same to the appointing authority.

Part VI ? Appointment, Probation, Confirmation, Transfer and Seniority

18A.

Appointment.

(1)

The appointing authority shall make appointment by taking the names of candidates in the order in which they stand in the list prepared under Rules 15,16,17 or 18 as the case may be.

(2)

If more than one orders of appointment are issued in respect of any one selection, a combined order shall also be issued, mentioning the names of the persons in order of seniority as determined in the selection or, as the case may be, as it stood in the cadre from which they are promoted.

19.

Probation.

(1)

A person substantively appointed to a post in the service shall be placed on probation for a period of two years.

(2)

The appointing authority may, for reasons to be recorded, extend the period of probation in individual cases, specifying the date upto which the extension is granted :

Provided that save in exceptional circumstances, the period of probation shall not be extended beyond one year and in no circumstance beyond two years.

(3)

If it appears to the appointing authority at any time during or at the end of the period of probation or extended period of probation, that a probationer has not made sufficient use of his opportunities or has otherwise failed to give satisfaction he may be reverted to his substantive post, if any, and if he does not hold a lien on any post, his services may be dispensed with.

(4)

A probationer who is reverted to whose services are dispensed with under sub-rule (3) shall not be entitled to any compensation.

(5)

The appointing authority may allow continuous service rendered in a post included in the cadre or any other equivalent or higher post to be taken into account for the purpose of computing the period of probation.

20.

Confirmation.

(1)

Subject to the provisions of sub-rule (2) probationer shall be confirmed in his appointment at the end of the period of probation or the extended period of probation, if (a) his work and conduct are reported to be satisfactory, and (b) his integrity is certified.

(2)

Where in accordance with the provisions of the Uttar Pradesh State Government Servants Confirmation Rules, 1991, confirmation is not necessary the orders under sub-rule (3) of Rule 5 of those rules declaring that the person concerned has successfully completed the probation, shall be deemed to be the order of confirmation.

21.

Seniority.

- The seniority of persons substantively appointed in any category of posts shall be determined in accordance with the Uttar Pradesh Government Servants Seniority Rules, 1991 as amended from time to time.

Part VII ? Pay Etc.

22.

Scale of pay.

(1)

The scale of pay admissible to person appointed to the various categories of posts in the service shall be such as may be determined by the Government from time to time.

(2)

The scales of pay at the time of the commencement of these rules are as per column 3 of the Appendix.

23.

Pay during probation.

(1)

Notwithstanding any provision in the Fundamental Rules to the contrary a person on probation, if he is noted already in permanent Government service, shall be allowed his first increment in the time scale when he has completed one year of satisfactory service, and second increment after two years service when he has completed the probationary period and is confirmed :

Provided that if the period of probation is extended on account of failure to give satisfaction such extension shall not count for increment unless the appointing authority directs otherwise.

(2)

The pay during probation of a person who was already holding a post under the Government shall be regulated by the relevant Fundamental Rules.

(3)

The pay during probation of a person already in the permanent Government service shall be regulated by the relevant rules, applicable to Government Servants generally serving in connection with the affairs of the State.

24.

Criteria for crossing efficiency bar.

- No persons shall be allowed to cross the efficiency bar unless his work and conduct is found to be satisfactory and unless his integrity is certified.

Part VIII ? Other Provisions

25.

Canvassing.

- No recommendations, either written or oral, other than those required under the rules applicable to the post shall be taken into consideration. Any attempt on the part of a candidate to enlist support directly or indirectly for his candidature will disqualify him for appointment.

26.

Regulation of other matters.

- In regard to the matters not specifically covered by these rules or special orders, persons appointed to the Service shall be governed by the rules, regulations and orders applicable generally to Government Servants, serving in connection with the affairs of the State.

27.

Relaxation from the conditions of services.

- Where the State Government is satisfied that the operation of any rule regulating the conditions of service of persons appointed to the Service causes undue hardship in any particular case, it may, notwithstanding anything contained in the rule applicable to the case, by order, dispense with or relax the requirements of that rule to such extent and subject to such conditions as it may consider necessary for dealing with the case in a just and equitable manner.

28.

Saving.

- Nothing in these rules shall affect reservations and other concessions required to be provided for the candidates belonging to the Scheduled Castes, Scheduled Tribes and other special categories of persons in accordance with the orders of the Government issued from time to time in this regard :

Appendix

Serial No.

Name of posts

Scale of pay

No. of Posts

Source of appointment

Qualifications

Permanent

Temporary

Total

1

2

3

4

5

6

7

8

1.

Assistant Registrar

2,000-60-2,300-EB-75-3,200

-

1

1

By direct recruitment through Commission

1. Bachelors degree of a University established

by law in India or a degree recognised by the Government as equivalent thereto.2. 3 years administrative experience.

2.

Accountant

1,400-40-1,600-50-2,300-EB-60-2,600

-

1

1

By direct recruitment through Selection Committee

Master's degree in commerce with

Accountancy from a University established by law in India or a degree recognised by the Government as equivalent thereto.

3.

Office Superintendent

Do.

-

1

1

By promotion from amongst substantively appointed senior Assistants Grade I who have completed 3 years service as such on the first day of the year of recruitment

4.

Librarian

1,200-30-1,560-EB-40-2,040

1

-

1

By direct recruitment through Selection Committee

1. Bachelor's degree of a University established by law in India or degree recognised by the Government as equivalent thereto. 2. Certificate in Library Science.

5.

Stenographer

Do.

2

-

2

By direct recruitment through Selection Committee

1. Must have passed Intermediate Examination from the Board of High School and Intermediate Education, Uttar Pradesh or an Examination recognised by the Government as equivalent thereto. 2. Must possess a speed of eighty words per minute in Hindi Shorthand writing and a speed of thirty words per minute in Hindi Typewriting.

Preferential: Knowledge of English

Shorthand writing and English Typewriting.

6.

Senior Assistant Grade I

1,350-30-1,440-40-1,800-EB-50-2,200

1

-

1

By promotion from amongst substantively appointed Senior Assistants Grade II who have completed 3 years service as such on the first day of the year of recruitment

7.

Senior Assistant Grade II

1,200-30-1,560-EB-40-2,040

2

-

2

By promotion from amongst substantively appointed Junior Clerks, Head Store Keeper, and Hostel Clerks

8.

Accounts Clerk

1,200-30-1,560-EB-40-2,040

1

-

1

By direct recruitment through Selection Committee

A Bachelor's degree in Commerce with

Accountancy from a University established by law in India or a degree recognised by the Government as equivalent thereto.

9.

Head Store Keeper

975-25-1,150-EB-30-1,660

1

-

1

By promotion from amongst substantively appointed Store-keepers who have completed 3 years service as such on the first day of the year of recruitment

10.

Librarian Clerk

950-20-1,150-EB-25-1,500

1

-

1

By direct recruitment through Selection Committee

1. Must have passed Intermediate Examination from the Board of High School and Intermediate Education, Uttar Pradesh or an Examination recognised by the Government as equivalent thereto. 2. A Certificate in Library Science.

11.

Junior Clerk/Storekeeper/Hostel Clerk

950-20-1,150-EB-25-1,500

5

4

9

By direct recruitment through Selection Committee

1. Must have passed Intermediate Examination from the Board of High School and Intermediate Education, Uttar Pradesh or an Examination recognised by the Government as

equivalent thereto.2. Typing speed twenty-five words per minute in Hindi Typewriting.

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